

time being in force, he discharged from all liabilities to any person whatsoever in respect of any amount so paid.

Comments

Section 15, sub-clause (1) provides that no suit shall lie against the railway administration to recover any amount for any damage or loss caused in exercise of the powers conferred by any of the foregoing provisions of this Chapter.

Sub-clause (2) provides that the amount of damage or loss shall be paid or tendered to the persons and if any dispute arises as to the sufficiency of the amount or as to the persons entitled to receive such amount, the same shall be referred to the District Judge who shall decide it as an appeal under Sec. 96 of the Code of Civil Procedure, 1908.

16. Accommodation Works – (1) A railway administration shall make and maintain the following works for the accommodation of the owners and occupiers of lands adjoining the railway, namely :

- (a) such crossings, bridges, culverts and passages over, under or by the sides of, or leading to or from, the railway as may, in the opinion of the State Government, be necessary for the purpose of making good any interruptions caused by the railway to the use of the lands through which the railway is made ; and
- (b) all necessary bridges, tunnels, culverts, drains, water sources or other passages, over, under or by the sides of the railway, of such dimensions as will, in the opinion of the state government, be sufficient at all times to convey water as freely from or to the lands lying near or affected by the railway as it was before the making of the railway or as nearly as possible.

(2) Subject to the other provisions of this Act, the works specified in sub-section(1) shall be made at the cost of the railway administration during or immediately after the laying out or formation of the railway over the lands traversed and in such a manner as to cause as little damage or inconvenience as possible to persons interested in the lands or affected by the works :

Provided that –

- (a) a railway administration shall not be required to make any accommodation works in such a manner as would prevent or obstruct the working or using of the railway, or to make any accommodation works with respect to which the owners or occupiers of the lands have been paid compensation in

consideration of their not requiring the said works to be made :

- (b) save as hereinafter, in this chapter, provided, no railway administration shall be liable to execute any further or additional accommodation works for the use of the owners or occupiers of the lands after the expiration of ten years from the date on which the railway passing through the lands was first opened for public traffic ;
 - (c) where a railway administration has provided suitable accommodation work for the crossing of a road or stream and the road or stream is afterwards diverted by the act or neglect of the person having the control thereof, the railway administration shall not be compelled to provide any other accommodation work for the crossing of such road or stream.
- (3) The State Government may specify a date for the commencement of any work to be executed under sub-section (1) and, if within three months next after that date, the railway administration fails to commence the work or having commenced it, fails to proceed diligently to execute it, the Central Government shall, on such failure being brought to its notice by the State Government, issue such directions to the railway administration as it thinks fit.

Explanation : For the purposes of this section, the expression “lands” shall include public roads.

Comments

Section 16 provides for the nature of accommodation works and the circumstances in which such accommodation works may be carried out by a railway administration.

Proviso. – it is a well settled principle of construction that unless clearly indicated, a proviso would not take away substantive rights given by the section or sub-section.

17. Power of owner, occupier, State Government or local authority to cause additional accommodation works to be made – (1) if an owner or occupier of any land affected by a railway considers the works made under sec.16 to be insufficient for the use of the land, or if the State Government or a local authority desires to construct a public road or other work across, under or over a railway, such owner or occupier, or, as the case may be, the State Government or the local authority may, at the time, require the railway